Business Associate Agreement

Effective November 2, 2026. This Business Associate Agreement applies automatically to Orders with HIPAA covered entities and business associates signed on or after its effective date, and to earlier Orders by written election.

This Business Associate Agreement (this "BAA") is part of the Agreement between The Boom Company (dba Boom Logic) ("Business Associate" or "Provider") and the Client identified in the Order ("Covered Entity" or "Client"). It applies automatically under Section 13.2 of the Master Services Agreement whenever Client is a covered entity or business associate under HIPAA, or Provider creates, receives, maintains, or transmits Protected Health Information on Client's behalf. Where Client is itself a business associate of another covered entity, "Covered Entity" in this BAA means Client, and Provider is Client's subcontractor business associate. Business Associate and Covered Entity are each a "Party" and together the "Parties." The Parties may also sign a copy of this BAA, and Provider recommends that health care Clients do so; a signed copy and this published version have the same effect.

This BAA is entered into to satisfy the requirements of the Privacy, Security, Breach Notification, and Enforcement Rules at 45 C.F.R. Parts 160 and 164, as amended by the HITECH Act (the "HIPAA Rules").

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1. Definitions

1.1 Incorporated Terms

Capitalized terms used but not defined in this BAA have the meanings given in the HIPAA Rules, including "Breach," "Data Aggregation," "Designated Record Set," "Disclosure," "Electronic Protected Health Information," "Health Care Operations," "Individual," "Minimum

Necessary," "Required By Law," "Secretary," "Security Incident," "Subcontractor," "Unsecured Protected Health Information," and "Use."

1.2 PHI

"Protected Health Information" or "PHI" means protected health information as defined at 45 C.F.R. § 160.103, limited to information that Business Associate creates, receives, maintains, or transmits for or on behalf of Covered Entity. "ePHI" means PHI maintained in or transmitted by electronic media.

1.3 Other Terms

"Agreement," "Order," "Services," and "Client Data" have the meanings given in the Master Services Agreement. "Discovery" of a Breach or Security Incident occurs as described at 45 C.F.R. § 164.410(a)(2); knowledge of a provider of a Third-Party Service that is not Business Associate's agent is Discovery by Business Associate when that provider notifies Business Associate.

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2. Permitted Uses and Disclosures

2.1 Services

Business Associate may Use or Disclose PHI only as necessary to perform the Services, as this BAA permits or requires, or as Required By Law. Business Associate will not Use or Disclose PHI in a manner that would violate Subpart E of 45 C.F.R. Part 164 if done by Covered Entity, except as permitted by Section 2.3.

2.2 Minimum Necessary

Business Associate will limit its Uses, Disclosures, and requests of PHI to the minimum necessary to accomplish the intended purpose, consistent with 45 C.F.R. §§ 164.502(b) and 164.514(d) and Covered Entity's

minimum-necessary policies that Covered Entity provides to Business Associate in writing.

2.3 Management and Administration

Business Associate may Use PHI for its proper management and administration or to carry out its legal responsibilities, and may Disclose PHI for those purposes only if the Disclosure is Required By Law, or Business Associate obtains reasonable written assurances from the recipient that the PHI will be held confidentially and Used or further Disclosed only as Required By Law or for the purpose for which it was disclosed, and that the recipient will notify Business Associate of any instance in which the confidentiality of the PHI has been breached.

2.4 No De-identification, Aggregation, or Secondary Use

Business Associate will not de-identify PHI, provide Data Aggregation services, or Use PHI for its own purposes (including product development, analytics, benchmarking, or training of machine-learning models), except with Covered Entity’s prior written authorization or as needed to perform the Services.

2.5 Prohibitions

Business Associate will not: (a) sell PHI or receive remuneration in exchange for PHI except as permitted by 45 C.F.R. § 164.502(a)(5)(ii); (b) Use or Disclose PHI for marketing or fundraising; or (c) Use or Disclose genetic information for underwriting purposes.

2.6 Clinical Systems

Nothing in this BAA authorizes Business Associate to access clinical content within Covered Entity’s electronic health record or practice management applications beyond what is necessary to perform the Services. Business Associate’s personnel will not log into those applications as a clinical user or view patient records except as necessary to perform a specific support task requested or approved by Covered Entity.

3. Obligations of Business Associate

3.1 Safeguards

Business Associate will use appropriate administrative, physical, and technical safeguards, and will comply with Subpart C of 45 C.F.R. Part 164 with respect to ePHI, to prevent Use or Disclosure of PHI other than as provided by this BAA. Business Associate will conduct and maintain a documented risk analysis and risk management process consistent with 45 C.F.R. § 164.308(a)(1), and will provide a summary of its security program to Covered Entity on reasonable request.

3.2 Encryption

Business Associate will encrypt ePHI at rest and in transit on systems it manages, consistent with the guidance issued under Section 13402(h)(2) of the HITECH Act, including ePHI in backups, call recordings, voicemail, and hosted file and database environments, except where Business Associate documents that encryption is not reasonable and appropriate and implements an equivalent alternative measure.

3.3 Reporting of Non-Permitted Uses, Security Incidents, and Breaches

Business Associate will report to Covered Entity in writing:

- any ransomware event or any confirmed compromise of a system that stores or processes PHI, by an initial notice within twenty-four (24) hours after Discovery, which may be given by telephone and e-mail to Covered Entity’s designated contact;
- any Use or Disclosure of PHI not permitted by this BAA, any Security Incident, and any Breach of Unsecured PHI, without unreasonable delay and in no case later than five (5) business days after Discovery.

Each report will include, to the extent known and supplemented promptly as information becomes available: the identity of each Individual whose Unsecured PHI has been, or is reasonably believed to have been,

accessed, acquired, Used, or Disclosed; the dates of the incident and of Discovery; a description of the types of PHI involved; what Business Associate has done to investigate, contain, and mitigate; and any other information Covered Entity needs to meet its obligations under 45 C.F.R. §§ 164.404 through 164.408 and California Health and Safety Code Section 1280.15. Unsuccessful attempts at unauthorized access that are routinely logged and do not result in unauthorized access to PHI (such as pings, port scans, and blocked log-in attempts) are reported in aggregate in Business Associate's periodic security reporting and do not require individual notice.

3.4 Cooperation and Mitigation

Business Associate will cooperate with Covered Entity's breach risk assessment and investigation, will mitigate, to the extent practicable, any harmful effect known to it of a Use or Disclosure of PHI in violation of this BAA, and will not notify Individuals, regulators, or the media of a Breach involving Covered Entity's PHI without Covered Entity's direction, except as Required By Law.

3.5 Breach Costs

If a Breach of Unsecured PHI is caused by Business Associate's or its Subcontractors' failure to perform the Services as agreed, negligence, or breach of this BAA, Business Associate will reimburse Covered Entity's reasonable, documented Breach Costs (as defined in the Master Services Agreement), subject to the Data Protection Cap in the Master Services Agreement. Liability for Breaches occurring at providers of Third-Party Services is governed by Section 8.2 of the Master Services Agreement.

3.6 Subcontractors

In accordance with 45 C.F.R. §§ 164.502(e)(1)(ii) and 164.308(b)(2), Business Associate will ensure that each Subcontractor that creates, receives, maintains, or transmits PHI on its behalf agrees in writing to the same restrictions and conditions that apply to Business Associate under the HIPAA Rules with respect to that PHI, including compliance with Subpart C of 45 C.F.R. Part 164 and reporting of Security Incidents

and Breaches to Business Associate. Sections 3.2, 3.3 (as to its 24-hour and five-business-day periods), and 3.10 through 3.12 are obligations of Business Associate and need not be imposed on Subcontractors in the same terms. Business Associate is responsible for its Subcontractors' compliance with those restrictions as provided in the Master Services Agreement. Business Associate will provide Covered Entity a current list of those Subcontractors on written request.

3.7 Access, Amendment, and Accounting

To the extent Business Associate maintains PHI in a Designated Record Set, Business Associate will make that PHI available to Covered Entity, or as Covered Entity directs to an Individual, and will make amendments that Covered Entity directs, in each case within fifteen (15) calendar days after Covered Entity's request, as needed for Covered Entity to meet 45 C.F.R. §§ 164.524 and 164.526. Business Associate will document Disclosures of PHI and the related information required for Covered Entity to respond to a request for an accounting under 45 C.F.R. § 164.528, and will provide it to Covered Entity within fifteen (15) calendar days after request. Business Associate will forward to Covered Entity, within five (5) business days, any such request it receives directly from an Individual.

3.8 Covered Entity Obligations

To the extent Business Associate carries out an obligation of Covered Entity under Subpart E of 45 C.F.R. Part 164, it will comply with the requirements of Subpart E that apply to Covered Entity in performing that obligation.

3.9 Availability of Books and Records

Business Associate will make its internal practices, books, and records relating to the Use and Disclosure of PHI available to the Secretary for purposes of determining compliance with the HIPAA Rules, and will promptly notify Covered Entity of any such request unless prohibited by law.

3.10 Workforce

Business Associate will ensure that members of its workforce with access to PHI have passed a background check, are trained on their obligations under this BAA and the HIPAA Rules before receiving access and at least annually, and are subject to appropriate sanctions for violations.

3.11 Exclusion Screening

Business Associate will screen its employees and individual contractors who have access to Covered Entity's systems or PHI against the HHS Office of Inspector General List of Excluded Individuals/Entities and the System for Award Management exclusion records before granting access and at least monthly afterward, will not allow an excluded person to perform the Services, and will notify Covered Entity promptly if any such person is found to be excluded.

3.12 Data Location

Business Associate will store PHI at rest only in data centers located in the United States. Personnel of Business Associate's Subcontractors may access PHI remotely from other locations only as needed to provide support, security monitoring, and incident response, and only under written terms that comply with Section 3.6.

3.13 California Law

To the extent applicable to Business Associate as a contractor or provider of services, Business Associate will comply with the California Confidentiality of Medical Information Act (California Civil Code Section 56 and following) with respect to medical information it receives from Covered Entity.

3.14 Substance Use Disorder Records

If Business Associate receives records protected by 42 C.F.R. Part 2 from Covered Entity, Business Associate acknowledges that it is fully bound by Part 2 in dealing with those records, will resist in judicial proceedings any effort to obtain access to them except as Part 2 permits, and agrees

that this BAA serves as a qualified service organization agreement for purposes of 42 C.F.R. § 2.11 and § 2.12(c)(4).

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4. Obligations of Covered Entity

4.1 Notices and Restrictions

Covered Entity will notify Business Associate of any limitation in its notice of privacy practices, any change in or revocation of an Individual's permission to Use or Disclose PHI, and any restriction it has agreed to under 45 C.F.R. § 164.522, to the extent the limitation, change, or restriction may affect Business Associate's Use or Disclosure of PHI.

4.2 Permissible Requests

Covered Entity will not ask Business Associate to Use or Disclose PHI in any manner that would not be permissible under Subpart E of 45 C.F.R. Part 164 if done by Covered Entity, except as permitted by Section 2.3.

4.3 Content and Configuration

Covered Entity is responsible for the PHI that it and its workforce place into systems Business Associate supports, including voicemail and call recordings, and for directing recording, retention, and access settings consistent with its own policies. Business Associate will implement those settings as Covered Entity directs in writing.

4.4 Contacts

Covered Entity will designate in writing a privacy officer and a security contact to receive notices under Section 3.3, and will keep that information current.

5. Term and Termination

5.1 Term

This BAA takes effect on the Order Effective Date (or, if later, the date Business Associate first receives PHI) and continues until all PHI is returned or destroyed, or protections are extended to it, under Section 5.4.

5.2 Termination for Cause

If Business Associate materially breaches this BAA, Covered Entity may terminate this BAA and the Agreement, without an early termination fee, if Business Associate does not cure the breach within thirty (30) days after written notice, or immediately if cure is not possible. Business Associate has the same rights if Covered Entity materially breaches its obligations under this BAA.

5.3 Return or Destruction

Within thirty (30) days after the Exit Date (as defined in Section 13.1 of the Master Services Agreement), Business Associate will, as Covered Entity directs, return all PHI to Covered Entity in the native or industry-standard formats available from the systems used to deliver the Services, or destroy it, and will retain no copies except as provided in Section 5.4. This applies to PHI in the possession of Business Associate's Subcontractors. PHI in backup media that cannot be selectively deleted will be destroyed when that media's retention period expires, not later than ninety (90) days after the Exit Date, and remains subject to this BAA until then. Business Associate will certify return or destruction in writing.

5.4 Infeasibility

If return or destruction is not feasible, Business Associate will notify Covered Entity in writing of the conditions that make it infeasible, extend the protections of this BAA to the retained PHI, and limit further Uses

and Disclosures to the purposes that make return or destruction infeasible, for as long as it retains the PHI.

5.5 Survival

Sections 2, 3, 5.3, 5.4, 5.5, and 6 survive termination for as long as Business Associate or any Subcontractor retains PHI.

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6. General

6.1 Relationship to the Agreement

This BAA is part of the Agreement, and precedence among the Contract Documents is governed by Section 1.3 of the Master Services Agreement. A signed business associate agreement between the Parties that is specific to Client, if any, controls over this published BAA to the extent of any conflict, except that Section 6.2 of this BAA and Section 15 of the Master Services Agreement apply unless that signed agreement expressly refers to and overrides them.

6.2 Liability

Liability under this BAA is subject to the Master Services Agreement, including its Data Protection Cap and Excluded Claims.

6.3 Regulatory References; Amendment

A reference to the HIPAA Rules means them as in effect or amended. The Parties will amend this BAA as necessary to comply with changes to the HIPAA Rules; any other amendment must be in a writing signed by both Parties.

6.4 Interpretation

Any ambiguity in this BAA will be resolved to permit the Parties to comply with the HIPAA Rules.

6.5 No Third-Party Beneficiaries

Nothing in this BAA confers rights on any person other than the Parties and their permitted successors and assigns.

6.6 Governing Law; Notices

This BAA is governed by the laws of the State of California, except to the extent preempted by federal law. Notices are given as provided in the Master Services Agreement and, for notices under Section 3.3, also to Covered Entity’s designated privacy officer and security contact.

Version history

VERSION	EFFECTIVE	STATUS
Business Associate Agreement	November 2, 2026	Current — supersedes and replaces all prior versions. New document. Replaces Section 1 (HIPAA) of the Data Processing Agreement for Orders signed on or after this date.